

UNITED STATES BANKRUPTCY COURT
DISTRICT OF OREGON

In re

Case No. _____
☐ Amended

Debtor

**NOTICE OF MOTION AND CHAPTER 13
DEBTOR'S MOTION TO VALUE
PROPERTY AND AVOID WHOLLY
UNSECURED LIEN**

Notice

If you oppose the relief sought in this motion, you must file a written objection with the bankruptcy court no later than 14 days after the date listed in the certificate of service below. If you do not file an objection, the court may grant the motion without further notice. Your objection must set forth the specific grounds for objection and your relation to the case. The objection must be received by the clerk of court at 1050 SW 6th Ave #700, Portland, OR 97204 or 405 E 8th Ave #2600, Eugene, OR 97401 by the deadline specified above or it may not be considered.

[Check one]:

☐ Within that same time, you must also serve the objection on *[insert name, address, and phone number of movant]*:

☐ You need not serve the objection because movant's counsel is an ECF participant and will receive notice electronically.

If you file a timely response and the court requires a hearing, all parties will be given notice of the hearing date, time, and location.

Motion

1. Debtor moves the court to value property and avoid wholly unsecured liens in this chapter 13 case under 11 U.S.C. §§ 506(d) and 1322. The liens to be avoided secure claims of the following creditors *[insert name and address of each creditor whose lien is to be avoided]*:

2. Description of property subject to the liens *[for real property, include address and legal description; for personal property include VIN or serial number if applicable]*:

Additional property description attached? ☐ Yes ☐ No

3. Information about perfection of liens to be avoided:

[For real property, include name or nature of recorded document, recording date, county and state of recording, and all recording reference numbers.]

[For personal property, include means of perfection (filing/recording, possession, or otherwise) and any reference information for the means of perfection (location of filing office, type of form filed, date filed, and all reference numbers).]

Additional perfection information attached? ☐ Yes ☐ No

4. Date petition filed: _____

5. Value of property on petition date: \$_____

6. Name of each holder of a lien senior to the liens to be avoided:

7. Balance owing to each senior lienholder on petition date, excluding any precomputed interest or other unearned charges:

8. Due to the senior liens, each lien to be avoided has no value in the collateral, so under § 506(a), each such lien is entirely an unsecured claim, and under § 506(d), each such lien is void.
9. Based on the foregoing and under §§ 506(d) and 1322, debtor is entitled to avoid the liens to be avoided so that they are no longer liens against the property.

Signature _____ OSB#, if attorney _____

Debtor's address and last four digits of taxpayer ID# _____

Phone # _____

Certificate of Service

I certify that on _____, I served this notice and motion under Federal Rule of Bankruptcy Procedure (FRBP) 7004 on the following parties as follows—

- a) For each party who is not an insured depository institution (see FRBP 7004(b)), I served by first-class mail to the party at the name and address exactly as follows:

- b) For each party who is an insured depository institution (see FRBP 7004(h)), I served by certified mail or by other authorized means specified below at the name and address exactly as follows:

Signature _____ OSB#, if attorney _____